
Retainer Agreement

RCIC Member Number: R713046

Client File Number:

This Retainer Agreement was made on _____ between RCIC **Hamed Sugimoto**, located at 501-3292 Production Way, Greater Vancouver – V5A 4R4 - Canada,
, and the Client _____, located at _____

WHEREAS the RCIC and the Client wish to enter into a written agreement which contains the agreed-upon terms and conditions upon which the RCIC will provide his/her services to the Client.

AND WHEREAS the RCIC is a member of the College of Immigration and Citizenship Consultants (CICC), the regulator in Canada for immigration consultants;

IN CONSIDERATION of the mutual covenants contained in this Agreement, the parties agree as follows:

1. Definitions

The terms “Client,” “CICC,” “Disbursement,” and “RCIC” shall have the meaning given to such terms in the Retainer Agreement Regulation of the Council.

2. RCIC Responsibilities and Commitments

The Client asked the RCIC, and the RCIC has agreed to act for the **Client**, in the matter of Permanent Residence Application by following the program:

Express Entry only
PNP only
PNP and Express Entry

In consideration of the fees paid and the matter stated above, the RCIC agrees to do the following:

- a) Representing the file of the Client.
- b) Checking and verifying that all Client (s) documents and forms meet the requirements of the Immigration Regulations. Please note that some of the work to be undertaken may be delegated to employees or contracted out in order to expedite the processing of the work associated with the application.
- c) Preparing and filing submissions for online applications and/or by mail.
- d) Verify and ensure all submissions are on time as specified by the regulations.
- e) Communication with the visa officer, if required, for clarification until the final decision is reached
- f) Ensuring that all applicable government fee payments for applications are duly paid on behalf of the Client.
- g) Please be advised that information and documents may be shared with employees who may be involved in this case, both salaried and contracted, and they may be shared with outside parties in the event of a complaint, investigation, tribunal or if required by law.

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- h) Track the CLIENT's file through the entire immigration process and endeavor to provide quality consulting services and to adequately supervise any employees participating or assisting in this process. A list of employees who might assist in the Client's case is listed on the official website: <https://sugimotovisa.com/>
- i) The estimated timeframe for processing the application is in accordance with the approximate timeframes provided on the official website of IRCC, and RCIC shall have no control over it: <https://www.canada.ca/en/immigration-refugees-citizenship/services/application/check-processing-times.html>
- j) RCIC shall, if needed, obtain the assistance of a translator for communicating with the Client. Fees for such services shall be paid by the Client.
- k) If RCIC receives any original documents from the Client, he shall return such original documents as soon as the purpose for receiving these documents is achieved.

3. Client Responsibilities and Commitments

3.1 The Client must provide, upon request from the RCIC:

- All necessary documentation is required by Immigration, Refugee, and Citizenship Canada.
- All documentation is in English or has a certified English translation.
- Inform RCIC of the change of status, address, and any information that bears to the Client(s) application.
- Give biometrics on time as required for PR application.

3.2 The Client understands that they must be accurate, honest, and genuine in the information they provide. Any inaccuracies may void this Agreement or seriously affect the outcome of the application or the retention of any status they may obtain. The RCIC's obligations under the Retainer Agreement are null and void if the Client provides any inaccurate, misleading, or false material information. The Client's financial obligations remain.

3.3 In the event Immigration, Refugees and Citizenship Canada (IRCC) or Employment and Social Development Canada (ESDC) should contact the Client directly, the Client is instructed to notify the RCIC immediately.

3.4 The Client is to immediately advise the RCIC of any change in the marital, family, or civil status or change of physical address or contact information for any person included in the application.

3.5 The client has confirmed that they are responsible for providing their Resume (CV) and all required documents and information in English or French. RCIC may only give advice on the structure. It is only the client's responsibility to provide, check, and confirm the CV.

3.6 In the event of a Joint Retainer Agreement, the Clients understand that no information received in connection with the matter from one Client can be treated as confidential so far as any of the other Clients are concerned and that if a conflict develops, that cannot be resolved, the RCIC cannot continue to act for both or all of the Clients and may have to withdraw completely.

3.7 The Client understands that they have the option to engage third parties to facilitate admission into educational institutions based on their preference and request. Under no circumstances is the Client required to employ the services of RCIC for the purpose of securing admission to any institution.

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Should the Client choose to engage RCIC's services for this specific purpose, RCIC agrees to provide such services at no additional cost, with all fees paid under this agreement pertaining solely to immigration services. Furthermore, the Client acknowledges and consents to the possibility of RCIC receiving commissions from educational institutions as part of this arrangement.

- 3.8 If the Client fails to deliver the requested documents within 150 days to RCIC, RCIC shall have the right to terminate this agreement, in which case, he/she shall be entitled to receive all dues as a service fee.

4. Billing Method and Payment Schedule

4.1 Billing Method

The Client will be billed a flat fee based on milestones. All payments will be in **Canadian Dollars**. The details of the payment terms and conditions are as follows:

Professional Fees:	\$
Applicable Tax:	\$
Discount:	\$
Total Cost:	\$

*Professional fees exclude government fees, registration fees, biometrics fees, medical exam fees, and other fees regarding the program application, as well as any other fees that the client(s) are obligated to pay to any third party(ies). The above amount is to be paid by the Client(s) and is subject to change upon mutual agreement of both parties. The Client(s) will be billed by milestones and pre-determined dates as follows. The RCIC's obligations under this Agreement are strictly conditional upon payment of the first installment. Should the first installment remain unpaid for a period of ten (10) days, this Agreement shall automatically terminate without any further obligation or liability on the part of the RCIC, unless otherwise agreed to by the Parties in advance.

*Government fees refer to the latest fees required by IRCC or Provincial (Territorial) governments. These fees may change without notice and need to be paid by the client. If necessary, the client can pay the government fees to the RCIC, who will then forward the payment to the government.

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4.2 Payment Schedule

Fees shall be paid by the Client to the Consultant as follows:

5. Communications

- 5.1 RCIC will keep the Client informed regularly of the progress of, and issues relating to the matter. RCIC will also keep a copy for the Client of pertinent correspondence and documents created on their behalf.
- 5.2 By virtue of the confidentiality rules, RCIC is bound to hold in strict confidence all information about the Client's business and affairs that RCIC acquires by virtue of its professional relationship with the Client(s). RCIC will only disclose such information if he/she is expressly or implicitly authorized to do so by the Client(s), or he is otherwise required to by law. RCIC and any staff and/or contractors will use a variety of means of communication with the Client(s), including cell phone and e-mail. The Client's execution of this agreement authorizes RCIC and any staff and/or contractors to communicate with and/or transmit documents to the Client or on his or her behalf by fax, cell phone, and e-mail. The Client(s) also acknowledge and accept the risk that these means of communication may not be secure. If the Client does not want RCIC and any staff and/or contractors to communicate with him or her by fax, cell phone, or e-mail, the Client(s) must advise RCIC in writing.
- 5.3 It is agreed by all parties that the only and most preferred fashion of communication is by email, and mail is only an acceptable method of correspondence if specifically instructed by the RCIC and that RCIC and its staff are not obliged to answer and/or reply to the client's and them designates' phone calls.

6. Refund Policy

The Client acknowledges that granting a visa or status and the time required for processing this application is at the sole discretion of the government of Canada and not the RCIC and any staff and/or contractors.

- Unused fees, if any, will be refunded to the Client, or his or her Designate.

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- Fees are not refundable in the event of an application refusal.

7. Dispute Resolution Related to the Code of Professional Ethics.

In the event of a dispute related to the Code of Professional Conduct, the Client and RCIC are to make every effort to resolve the matter between the two parties. In the event a resolution cannot be reached, the Client is to present the complaint in writing to the RCIC and allow the RCIC 30 days to respond to the Client. In the event the dispute is still unresolved, the Client may follow the complaint and discipline procedure outlined by the Council on their website: <https://college-ic.ca/protecting-the-public/complaints-process/>. NOTE: All complaint forms must be signed.

CICC Contact Information:

College of Immigration and Citizenship Consultants (CICC)
5500 North Service Rd., Suite 1002 Burlington, ON, L7L 6W6
Toll-free: 1-877-836-7543

The college may require the production of documents in accordance with the Act. All applicable laws can be accessed on the official website of the College, and the Client acknowledges that he/she has access to them: <https://college-ic.ca/about-the-college/governance>

8. Confidentiality

All information and documentation reviewed by the RCIC, required by IRCC and all other governing bodies, and used for the preparation of the application will not be divulged to any third party, other than agents and employees, without prior consent, except as demanded by law. The RCIC and all agents and employees of the RCIC are also bound by the confidentiality requirements of Article 8.1 of the Code of Professional Ethics. The Client agrees to the use of electronic communication and storage of confidential information. The RCIC will use his/her best efforts to maintain a high degree of security for electronic communication and information storage.

9. Force Majeure

The RCIC's failure to perform any term of this Retainer Agreement, as a result of conditions beyond his/her control, such as, but not limited to, governmental restrictions or subsequent legislation, war, strikes, or acts of God, shall not be deemed a breach of this Agreement.

10. Change Policy

The Client acknowledges that if the RCIC is asked to act on the Client's behalf on matters other than those outlined above in this Agreement, or because of a material change in the Client's circumstances, or because of material facts not disclosed at the outset of the application, or because of a change in government legislation regarding the processing of immigration-related applications, the Agreement can be modified accordingly.

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11. Termination

- 11.1 This Agreement is considered terminated upon completion of tasks identified under section 2 of this Agreement.
- 11.2 This Agreement is considered terminated if material changes occur to the Client's application or eligibility, which make it impossible to proceed with the services detailed in section 2 of this Agreement.
- 11.3 This Agreement may be terminated, upon writing, by the Client, at which time any outstanding fees or Disbursements will be refunded by the RCIC to the Client/any outstanding fees or Disbursements will be remitted by the Client to the RCIC.
- 11.4 Pursuant to the Code of Professional Conduct, this Agreement may be terminated, upon writing, by the RCIC, provided withdrawal does not cause prejudice to the Client.

12. Governing Law

This Agreement shall be governed by the laws in effect in the Province of British Columbia and the federal laws of Canada applicable therein, and except for disputes according to Section 8 hereof, any dispute with respect to the terms of this Agreement shall be decided by a court of competent jurisdiction within the Province of British Columbia.

13. Miscellaneous

- 13.1 This Agreement constitutes the entire agreement between the parties with respect to the subject matter hereof and supersedes all prior agreements, understandings, warranties, representations, negotiations, and discussions, whether oral or written, of the parties except as specifically set forth herein.
- 13.2 This Agreement shall be binding upon the parties hereto and their respective heirs, administrators, successors, and permitted assigns.
- 13.3 This Agreement may only be altered or amended when such changes are made in writing and executed by the parties hereto.

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- 13.4 The provisions of this Agreement shall be deemed severable. If any provision of this Agreement shall be held unenforceable by any court of competent jurisdiction, such provision shall be severed from this Agreement, and the remaining provisions shall remain in full force and effect.
- 13.5 The headings utilized in this Agreement are for convenience only and are not to be construed in any way as additions to or limitations of the covenants and agreements contained in this Agreement.
- 13.6 Each of the parties hereto shall do and execute or cause to be done or executed all such further and other things, acts, deeds, documents, and assurances as may be necessary or reasonably required to carry out the intent and purpose of this Agreement fully and effectively.
- 13.7 The Client acknowledges that they have had sufficient time to review this Agreement and have been allowed to obtain independent legal advice and translation prior to the execution and delivery of this Agreement. In the event the Client did not seek independent legal advice prior to signing this Agreement, they did so voluntarily without any undue pressure and agree that the failure to obtain independent legal advice shall not be used as a defense to the enforcement of obligations created by this Agreement. Furthermore, the Client acknowledges that he/she has received a copy of this Agreement and agrees to be bound by its terms.
- 13.8 The Client acknowledges that they have requested that the Agreement be written in the English language.

14. Contact Information

Client

Given Name:

Family Name:

Residential Address:

Telephone/Cellphone Number:

E-mail:

RCIC

Given Name: Hamed

Family Name: Sugimoto

RCIC Member Number: R713046

Business Address: 501-3292 Production Way, Greater Vancouver – V5A 4R4 - Canada

Telephone Number: +1 (778) 200-8856

E-mail: Legal@sugimotovisa.com

IN WITNESS THEREOF, this Agreement has been duly executed by the parties hereto on the date first above written.

Signature of Client

Date

Signature of RCIC Date

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